Dayaram Yadav And 2 Others vs State Of U.P. And 6 Others on 6 May, 2016

Author: Yashwant Varma

Bench: Yashwant Varma

HIGH COURT OF JUDICATURE AT ALLAHABAD

Chief Justice's Court

Case :- PUBLIC INTEREST LITIGATION (PIL) No. - 20672 of 2016

Petitioner :- Dayaram Yadav And 2 Others

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Rajiv Lochan Shukla

Counsel for Respondent :- C.S.C.,Ram Babu Yadav

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud,Chief Justice

Hon'ble Yashwant Varma,J.

The writ petition which has been filed in the public interest has highlighted the failure of the State to implement the judgment of the Division Bench of this Court dated 28 May 2014 in Om Prakash Varma & Ors Vs State of Uttar Pradesh & Ors1. This judgment of the Division Bench dealt with the serious issue of encroachments on public utility lands, including among them lands which are reserved for parks, ponds and pasture lands which are being increasingly encroached upon in the absence of any remedial action by the State Government. The Division Bench adverted to the judgments of the Supreme Court in Hinch Lal Tiwari Vs Kamla Devi2 and Jagpal Singh Vs State of Punjab3. The Court formulated detailed guidelines and issued directions, having due regard to the

provisions of Section 122-B of the Uttar Pradesh Zamindari Abolition and Land Reforms Act, 1950 and the Rules which have been framed under the said legislation. Comprehensive guidelines have been issued in regard to the discharge of duties by the District Collectors, to initiate proceedings under Section 122-B and where the proceedings have been concluded, to enforce the orders in accordance with the provisions of the Rules.

In the present case, the writ petition has highlighted the fact of non-implementation of orders or, as the case may be, failure to conclude the proceedings which have been initiated under Section 122-B. We may note, at this stage, that Section 122-B has now been succeeded by the provisions of Section 67 of the Uttar Pradesh Revenue Code-2006 which has recently come into force in the State of Uttar Pradesh.

The petitioners have annexed two lists at Annexures-14 and 15 to the writ petition. The first list contains a tabulated chart in relation to village Gharwaspur where orders have been passed under Section 122-B, which according to the petitioners, have not been enforced. The second list contains a tabulated statement in relation to villages Deoria and Baruiya. All three villages fall in the district of Mirzapur.

In our view, since the Division Bench has already laid down comprehensive guidelines and has issued directions to the State Government in Om Prakash Verma (supra), the issue which now really remains is the lack of administrative will to secure enforcement of the directions. This is a serious matter which must necessarily be taken up by the Court. We may note that the provisions of Section 67 and 136 of the U P Revenue Code, 2006 sufficiently empower the respondents to rid public utility lands from encroachments. Rule 67 (6) of the U P Revenue Code Rules, 2006 mandates that the Assistant Collector shall conclude the enquiry under Section 67 within 90 days of the issuance of the show cause notice and in case of failure to adhere to the time frame, the authority is obliged to record reasons. Yet this Court on a daily basis is deluged by petitions alleging failure to act against encroachments or apathy in implementing orders of eviction. The obligation to preserve land meant for public utility purposes rests upon the State. Action against encroachments cannot be left to depend upon individuals instituting legal proceedings to secure enforcement of the mandate cast by Sections 67 and 136.

Hence, we are of the view that within a period of one month from today, the Principal Secretary (Revenue) shall take all necessary steps to circulate a copy of the judgment and order of this Court dated 28 May 2014 and this judgment to all the District Collectors. The problem shall be addressed at various levels. Firstly, where there are complaints of unauthorized encroachments, these complaints must be duly registered by the District Collectors and steps have to be initiated to deal with the encroachments on public utility lands in accordance with law. In order to ensure transparency in administration, the Principal Secretary (Revenue) will formulate guidelines that would ensure that all complaints of unauthorized encroachments are registered. The details of the complaints must be maintained in a manner which is open for public inspection so that citizens are enabled to know the fate of the complaints and the proceedings which have been initiated. Secondly, the process of initiating proceedings under Section 67 must be streamlined so that the complaints are enquired into expeditiously and proceedings are adopted with due process of law and are

concluded without delay. The circular shall also make provision for laying down time lines for redressal of complaints, completion of enquiries and steps to be taken for enforcement. The Principal Secretary (Revenue) is directed to highlight the mandate of Rule 67 (6) referred to above. Thirdly, where orders have been passed under Section 67 (or as the case may be in earlier proceedings under Section 122-B), it is necessary that compliance of orders should be duly made under the applicable provisions of law.

Non-enforcement of orders under Section 122-B or, as the case may be, under Section 67 is also a serious matter since it amounts to dereliction of duties on the part of the administration to enforce compliance of the orders for the removal of unauthorized encroachments. Undoubtedly, the persons who are affected by proceedings and orders, are entitled to pursue their rights and remedies in accordance with law. Hence, when these issues repeatedly come before this Court, a direction is issued for the purpose of verifying whether the order continues to hold the field or is subject matter of any other proceedings before a revisional forum. Where stay has been granted and where revisional remedies are pursued, the matter must be brought to expeditious conclusion. These guidelines which we have laid down, in addition to those of the judgment of the Division Bench in Om Prakash Verma (supra), are by way of guidelines to the Principal Secretary (Revenue) who is the head of the administration in such matters and matters pertaining to revenue. We now expect that the Principal Secretary shall duly apply his mind, preferably within a period of two months from today of the need to lay down a complete plan of action to ensure accountability on the part of the district administration and to ensure transparency in governance. The State is passing through a severe drought as a result of depletion of groundwater resources. Much of this situation is a result of rampant encroachments of the spaces which are earmarked for public utility purposes, including green areas, pasture lands and ponds etc. Unless serious steps are taken to remedy the situation, the situation will become more serious than the present.

In these circumstances, this Court would be constrained to reiterate the guidelines which were issued in Om Prakash Verma (supra) and to further direct the State to strengthen the procedure for enforcement so as to secure the interest of the public.

Insofar as the two lists (Annexure-14 and 15) are concerned, we direct the Collector and District Magistrate to cause a due verification of the facts which are set out in the writ petition. Where proceedings are pending, they shall be concluded expeditiously. Where orders have been passed and are awaiting enforcement, the district administration shall take necessary steps in accordance with law after verifying that the orders continue to hold the field and have not been stayed or modified by any higher forum.

The petition is, accordingly, disposed of. There shall be no order as to costs.

Order Date :- 6.5.2016 RKK/-

(Yashwant Varma, J) (Dr D Y Chandrachud, CJ)